Shubam Shan vs State Nct Of Delhi on 22 April, 2025

Author: Neena Bansal Krishna

Bench: Neena Bansal Krishna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 4731/2024
SHUBAM SHAN

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versus
STATE NCT OF DELHI

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CORAM:
HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA
ORDER

% 22.04.2025

1. A Petition under Section 482 BNSS has been filed on behalf of the Petitioner for grant of Anticipatory Bail in case FIR No.0796/2023 dated 28.09.2023 under Section 406/420/506 IPC registered at Police Station Adarsh Nagar, Delhi.

2. It is submitted that the FIR was lodged at the instance of the Complainant Ms. Parmila Lekhi regarding fraud, extortion of money, Criminal Breach of Trust and threat to her life. She stated that she had bought a plot bearing Patti No.01, Area 435 Sq.Mtr. Khasra No.325, Bhalswa Dairy Abadi, Guru Nanak Dev Colony for a consideration of Rs.50 lakhs, which she had paid through cheque. She further submitted that seller Sh. Kishan was not authorized to sell the plot as he was not the owner. She had already filed a Complaint against Kishan on which an FIR was This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/04/2025 at 22:30:19 registered in which he has been declared as a Proclaimed Offender. She further stated that one Pallavi Garg, a person known to her had told that the Applicant is a RAW agent who works in PMO Office. He would help her to recover her money which was given to Shri Kishan in respect of the plot of land. The Applicant not only assured him of getting her money back but also assured that he would get a Branch of J & K Bank opened in the house being built by the Complainant in the market. On these pretexts, he took a total sum of Rs.18.75 lakhs from the Complainant.

3. Being cheated by the Applicant, FIR No.0796/2023 was registered against the Applicant.

4. It is submitted on behalf of the Applicant that his Anticipatory Bail Application has been dismissed by the learned District & Sessions Judge. It is asserted that he was never served in the matter and was not aware about the registration of the FIR till he got information that the I.O has obtained Arrest Warrants against the Petitioner. He did not appear before the I.O because of the fear and having apprehension of arrest. It is submitted that he has always been available for interrogation by the I.O and that he has deep roots in the Society. He is a permanent resident of Jammu and Kashmir, but is willing to relocate in Delhi to be easily available during the investigations. It is furthers, submitted that there is no possibility of his tampering with the evidence or intimidating the witnesses. Hence, a prayer is made that he may be granted Anticipatory Bail.

5. During the pendency of the Petition, the Applicant has returned the entire amount of Rs.18.75 lakhs to the Complainant, in terms of Order dated 24.12.2024 which is confirmed by the Complainant who is present in person in the Court. The Applicant has already joined the investigations as has This is a digitally signed order.

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6. Considering the totality of circumstances, it is hereby directed that in the event of his arrest, the Applicant/Petitioner be admitted to bail by the Investigating Officer/Arresting Officer subject to the following conditions:

> (i) The Petitioner shall furnish a personal bond in the sum of Rs.35,000/- with one surety in the like amount to the satisfaction of the Investigating Officer/Arresting Officer.
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> (ii) The Petitioner shall join the investigations, as and when called by the Investigating Officer.
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> (iii) The Petitioner shall furnish his mobile number to the Investigating Officer on which he may be contacted at any time and shall ensure that the number is kept active and switched-on at all times.
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> (iv) The Petitioner shall not contact, nor visit, nor offer any inducement, threat or promise to any of the prosecution witnesses or other persons acquainted with the facts of case.
>
> (v) The Petitioner shall not tamper with evidence nor otherwise indulge in any act or omission that is unlawful or that would prejudice the proceedings in the pending trial.

7. The Petition stands disposed of in the above terms.

NEENA BANSAL KRISHNA, J APRIL 22, 2025/va This is a digitally signed order.

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